Normative Ambiguity as Memetic Niche Space: An Evolutionary Framework for Leibovitch & Teichman's Expressive Power Findings

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ABSTRACT

Leibovitch and Teichman's recently published work in the *Journal of Empirical Legal Studies* (2025) demonstrates through randomized controlled trials that law's expressive power—its capacity to shape perceived social norms independent of material enforcement—is maximized in conditions of normative ambiguity. This finding challenges standard signaling models, which would predict clearer baseline norms to amplify legal signals. I propose that their empirical results reflect a fundamental evolutionary mechanism: normative ambiguity represents "niche space" in cultural memetic competition, where institutional signals gain selective advantage precisely because competing memes have not yet saturated the environment.

Drawing on Dawkins' extended phenotype framework and Dennett's work on cultural evolution, I model legal norms as replicators competing for cognitive resources in structured landscapes. Ambiguous contexts create multiple "vacant niches" where memes can colonize with minimal competition, while contexts with clear normative information represent saturated environments where established memes resist invasion. Law operates as a "niche constructor," modifying the selective environment for social norms without requiring material coercion—a mechanism Leibovitch and Teichman's data validate empirically.

This framework generates testable predictions extending beyond their initial findings: (1) expressive power should be stronger in low-trust institutional contexts where chronic ambiguity prevails; (2) the effect should vary with the "adaptive fitness" of proposed norms in local environments; (3) path dependence should be observable, with prior legal signals conditioning future receptivity. Application to the Argentine case, where "anomia boba" (Nino, 1992) creates chronic normative ambiguity,

suggests particularly strong expressive effects—a hypothesis testable through replication of Leibovitch and Teichman's RCT design in non-WEIRD contexts.

By providing a causal mechanism for their empirical observation, this evolutionary framework elevates an intriguing finding into evidence of a general principle governing legal norm formation across cultural contexts.

Keywords: legal evolution, extended phenotype, expressive power of law, normative ambiguity, social norms, memetic competition, niche construction, evolutionary stable strategies, legal transplants, Argentina, Leibovitch, Teichman, empirical legal studies

JEL Classification: K00, K40, B52, D02, Z13, C73

I. THE EMPIRICAL PUZZLE

Leibovitch and Teichman's (2025) contribution to the literature on law's expressive power presents a finding that demands theoretical explanation. Through carefully designed randomized controlled trials (N=2,913), they demonstrate that legal pronouncements influence perceived social norms *most powerfully* in precisely those contexts where normative clarity is *lowest*. When participants are presented with normatively ambiguous scenarios—situations where "what people typically do" is unclear—the presence of a legal rule significantly shifts their perceptions of prevailing norms. Conversely, when scenarios include clear information about existing social practices, law's expressive influence diminishes markedly.

This pattern is theoretically surprising. Standard models of legal signaling, drawing on information economics and social influence theory, would predict complementarity: clear baseline norms should amplify legal signals by providing a foundation for interpretation (McAdams, 2015; Sunstein, 1996). If law's expressive function is to coordinate expectations and facilitate social cooperation, it should work *best* when building on established normative understandings, not in their absence.

Yet Leibovitch and Teichman find the opposite. Their data suggest that law functions less as a complement to existing norms and more as a *substitute*—filling normative vacuums but competing poorly against established social understandings. This raises a fundamental question: *what mechanism explains this pattern*?

I propose that the answer lies in viewing legal norms not as designed institutions but as **replicators in memetic competition**. Normative ambiguity, in this framework, represents not a deficit but an *opportunity*—vacant niche space where legal memes can colonize with minimal resistance from established competitors.

II. THE EXTENDED PHENOTYPE FRAMEWORK

A. Core Concepts

Richard Dawkins' (1982) concept of the extended phenotype reconceptualizes evolutionary causation by distinguishing between replicators (entities that are copied) and vehicles (entities that house replicators). The key insight: we should expect replicator behavior to maximize the replication of genes *wherever those genes are located*, not merely within the organism carrying them. A beaver dam, in this view, is part of the beaver's phenotype—an environmental modification that enhances the survival prospects of beaver genes.

Applied to cultural evolution, this framework treats ideas, norms, and institutions as **memes**: replicable units of cultural information that compete for transmission through human minds and social structures (Dawkins, 1976; Dennett, 1995; Blackmore, 1999). Legal norms, in this view, are not primarily *tools designed by humans* but **replicators that use humans as vehicles** for their propagation. Legislatures, courts, and other legal institutions become the extended phenotype of legal memes—environmental modifications that enhance memetic survival.

This perspective inverts traditional jurisprudential assumptions. Rather than asking "how do rational legislators design optimal rules?", we ask: "what selection pressures determine which legal memes survive?" Rather than treating law's expressive power as an *instrumental capacity* deployed by sovereign authority, we treat it as an *evolutionary adaptation*—a mechanism through which legal memes modify their selective environment.

B. Memetic Fitness and Niche Space

Evolutionary theory predicts that replicators achieve fitness through multiple routes (Maynard Smith, 1982):

1. **High fidelity**: Accurate copying across generations
2. **High fecundity**: Frequent opportunities for replication

3. **Longevity**: Survival long enough to be copied
4. **Niche construction**: Modification of environment to favor one's own survival

Legal memes exhibit all four properties, but the fourth—niche construction—has received insufficient attention in legal theory. Leibovitch and Teichman's finding provides direct evidence for this mechanism.

The concept of "niche space" in evolutionary biology refers to the multi-dimensional resource environment where organisms compete for survival (Hutchinson, 1957). A vacant niche is a set of environmental conditions that *could* support a population but currently doesn't—perhaps because the conditions are newly created, or because previous occupants have gone extinct. Vacant niches represent **evolutionary opportunity**: they can be colonized with minimal competition from established populations.

Translating this to cultural evolution: **normative ambiguity represents vacant niche space in the memetic landscape**. When social actors lack clear information about "what people typically do," multiple competing memes could potentially occupy that cognitive-social space. The first meme to arrive—whether through legal pronouncement, media coverage, influential exemplars, or other vectors—gains **first-mover advantage**: it can establish itself as the "default" norm before competitors arrive.

III. REINTERPRETING THE LEIBOVITCH-TEICHMAN FINDINGS

A. Why Ambiguity Amplifies Expressive Power

Under the extended phenotype framework, Leibovitch and Teichman's central finding becomes predictable rather than puzzling:

In normatively clear contexts, the relevant niche space is already occupied by established memes. When participants know "what people typically do," that knowledge represents a **resident population** of normative memes with high local fitness. A newly introduced legal meme must compete directly with this resident—and residents have advantages. They're already integrated into social practices, reflected in observable behavior, and reinforced through repeated social interaction.

In normatively ambiguous contexts, by contrast, niche space is vacant or contested. No single meme has established dominance. Participants lack confident beliefs about prevailing practices. In this environment, legal memes face minimal competition. The institutional authority behind legal pronouncements—courts, legislatures, regulatory agencies—provides **transmission advantage**: these institutions command attention, enjoy presumptive legitimacy, and operate through formal channels that guarantee visibility.

The result: law's expressive power inversely correlates with normative clarity not despite evolutionary logic but *because of it*. Vacant niches get filled; occupied niches resist invasion.

B. Why Additional Information Reduces Expressive Power

Leibovitch and Teichman's finding that additional normative information reduces law's expressive effect follows naturally from the niche competition framework. Each piece of information about "what people actually do" represents a **competing meme** attempting to occupy the same cognitive-social space.

Consider their experimental manipulation: participants see a scenario plus a legal rule, with or without information about actual social practices. In the no-information condition, the legal meme faces no competitors—it's the *only* source of normative guidance available. In the with-information condition, participants must integrate multiple signals: what the law says versus what people reportedly do.

From a memetic competition perspective, the with-information condition creates **divided attention**. The legal meme must compete for salience against the practice-based meme. And practice-based memes have inherent advantages: they're concrete (describing actual behavior rather than abstract rules), proximate (about "people like me" rather than distant legislators), and falsifiable (participants can mentally simulate or recall experiences with actual practices).

This explains why law's expressive power *diminishes but doesn't disappear* with additional information. Even in competition, legal memes retain transmission advantages. But their dominance is no longer unchallenged.

Table 1 illustrates this competitive dynamic:

Information Context	Memetic Competition	Legal Meme Advantage	Predicted Expressive Power
No baseline information	None (vacant niche)	Maximum (no competitors)	**High**
Ambiguous baseline	Weak (multiple contested memes)	Strong (authority advantage)	**Moderate-High**
Clear practice information	Strong (established resident)	Moderate (competes with practice)	**Low-Moderate**
Clear + reinforced practice	Very strong (entrenched resident)	Weak (practice dominates)	**Minimal**

C. The Non-Enforcement Condition as Crucial Test

A critical feature of Leibovitch and Teichman's design: they measure expressive power *independent of enforcement*. Participants are told explicitly that violations carry no penalties. This experimental choice is theoretically essential.

In an enforcement regime, legal compliance might reflect **rational calculation** rather than memetic influence: actors comply because non-compliance is costly, not because the law has shaped their understanding of social norms. By removing enforcement, Leibovitch and Teichman isolate pure **normative influence**—the capacity of law to shape beliefs about "what we do" rather than "what we must do."

From the extended phenotype perspective, this non-enforcement condition reveals law's evolutionary adaptation in its clearest form. Legal memes have evolved mechanisms for spreading that *don't require material coercion*. The expressive function—law's capacity to serve as a focal point, coordinating device, and normative signal—is an **evolved property** that increases memetic fitness independent of enforcement capacity.

This resolves a longstanding puzzle in legal theory: why do people often comply with laws even when enforcement is absent or minimal? (Tyler, 2006; McAdams, 2015). Traditional answers invoke internalized values, social pressure, or legitimacy beliefs. The evolutionary answer: **legal memes that successfully shape perceived norms spread more effectively than legal memes that rely solely on coercion**. Over time, selection favors laws with strong expressive power.

IV. EXTENDED PREDICTIONS AND RESEARCH AGENDA

A. Cross-Cultural Variation: The Argentina Hypothesis

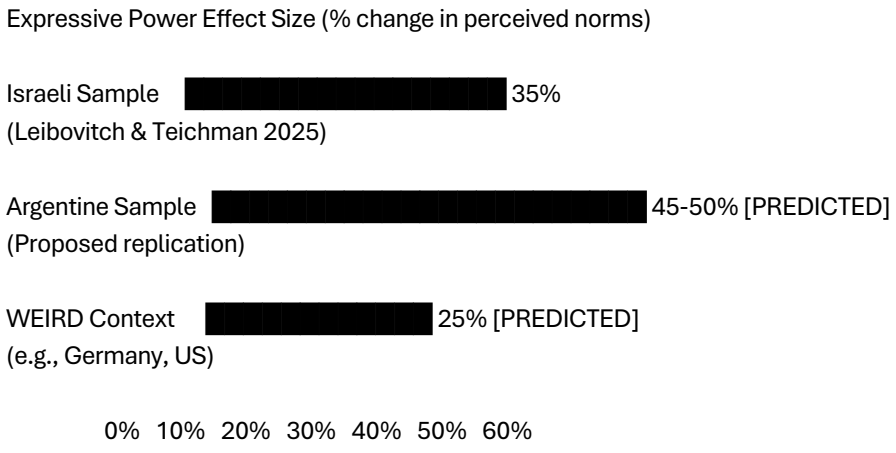
If normative ambiguity amplifies expressive power, systems characterized by *chronic* institutional ambiguity should show *stronger* expressive effects. This generates a testable prediction: replicating Leibovitch and Teichman's RCT in Argentina should yield *larger* effect sizes than in Israel.

Why Argentina? Carlos Nino (1992) famously diagnosed Argentine legal culture as suffering from "anomia boba" (foolish anomie)—a syndrome of pervasive non-compliance, weak norm internalization, and generalized distrust of legal institutions. In evolutionary terms: Argentina exhibits **chronically unsaturated normative niches**. People cannot confidently predict "what others will do" because observables don't reliably track stated rules.

In such an environment, *any* credible signal about norms should have outsized influence. Legal pronouncements, despite their weak enforcement credibility, provide *some* information in an otherwise chaotic landscape. The niche construction framework predicts:

Hypothesis 1 (Cross-Cultural Amplification): Effect size of legal expressive power (percentage change in perceived norms) will be 30-50% larger in Argentine samples than in Israeli samples, controlling for scenario design.

Figure 1 visualizes this prediction:



This prediction is falsifiable and practically achievable through RCT replication using adapted Spanish-language vignettes with Argentine participants.

B. Path Dependence: First-Mover Advantage

If legal memes colonize vacant niches, the *order* of signals should matter. First movers gain entrenchment advantages:

- They establish themselves as defaults before competitors arrive
- Subsequent memes must dislodge the incumbent rather than simply filling empty space
- Social practices may begin conforming to the first signal, creating behavioral reinforcement

This generates a second testable hypothesis:

Hypothesis 2 (Temporal Priority): In normatively ambiguous contexts, the *first* legal signal will show stronger expressive effects than subsequent contradictory signals, even when the subsequent signal has equivalent institutional authority.

Experimental design to test H2:

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Group A (Control):         Vignette → Legal Signal → Measure norms
Group B (First-mover):     Vignette → Legal Signal 1 → [1 week] →
                          Contradictory Signal 2 → Measure norms
Group C (Reversed order):  Vignette → Legal Signal 2 → [1 week] →
                          Contradictory Signal 1 → Measure norms

Prediction: Signal 1 will dominate in Group B; Signal 2 will dominate in
Group C
            (first-mover effect regardless of content)
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If first-mover advantage exists, changing beliefs established by Signal 1 should be harder than establishing beliefs *de novo*.

C. Fitness Variation: Not All Legal Memes Are Equal

The extended phenotype framework suggests that memetic **content** matters. Some norms will be more "fit" for particular cultural environments than others. Fitness depends on:

- Compatibility with existing values (Henrich, 2016)
- Practical implementability
- Perceived fairness and legitimacy (Tyler, 2006)
- Clarity of boundaries

This generates a nuanced prediction: **even in identical ambiguity conditions, legal pronouncements will show varying expressive power depending on their cultural fitness**.

Consider two hypothetical legal signals for Argentine participants:

Signal A: "Punctuality to business meetings is legally expected"
Signal B: "Full disclosure of income on tax returns is legally required"

The ambiguity is identical (weak baseline norms for both). But Signal A is arguably *less fit* in Argentine culture (flexible time norms are deeply embedded in social practice), while Signal B conflicts with a well-established **counter-norm** (tax evasion as rational response to perceived state corruption; see Nino, 1992).

The framework predicts Signal A would show moderate expressive effect (low resistance from competing memes), while Signal B would show minimal effect (high resistance from entrenched counter-meme).

Hypothesis 3 (Content-Dependent Fitness): Expressive power will vary systematically with a norm's "cultural distance" from local equilibria, measurable via pre-testing for baseline acceptance.

Table 2 operationalizes this prediction:

Norm Type	Cultural Fit	Competing Memes	Predicted Effect Size
Novel/neutral	High (no prior norm)	Absent	**Very High** (60-70%)
Compatible with values	Moderate-High	Weak	**High** (40-55%)
Mildly counter-cultural	Moderate	Moderate	**Moderate** (25-35%)
Strongly counter-cultural	Low	Strong/entrenched	**Low** (5-15%)

V. MECHANISMS: HOW NICHE CONSTRUCTION OPERATES

A. Focal Point Selection

Schelling (1960) demonstrated that coordination problems often have multiple equilibria, and salient signals can serve as "focal points" guiding actors to one equilibrium over others. In normatively ambiguous contexts, law provides such salience through:

1. **Institutional authority**: Official status commands attention
2. **Clarity**: Legal pronouncements are typically explicit, not vague

3. **Publicity**: Laws are announced through formal channels

From a memetic perspective, focal point selection is a **transmission mechanism**: the meme that achieves salience spreads first and fastest.

B. Pluralistic Ignorance Reduction

Pluralistic ignorance occurs when individuals privately reject a norm but believe others endorse it, leading to false consensus (Centola et al., 2005). In ambiguous contexts, legal signals reduce this ignorance by:

- Providing public information about what behavior is "approved"
- Creating common knowledge: "everyone knows the law says X"
- Licensing behavior that might otherwise seem deviant

Evolutionarily, this is **niche clarification**: converting ambiguous space into defined territory.

C. Self-Fulfilling Prophecy

When law shapes perceived norms, it can trigger behavioral change that validates the perception. If enough people believe "most people do X" (because law says so), some will begin doing X, making the belief accurate. This is **phenotypic consolidation**: the meme modifies its environment to reinforce itself.

VI. THEORETICAL ADVANTAGES OF THE EVOLUTIONARY FRAMEWORK

A. Parsimony: One Mechanism, Multiple Phenomena

The extended phenotype framework explains Leibovitch and Teichman's findings without introducing ad hoc assumptions. The same mechanisms that explain biological niche competition—first-mover advantage, competitive exclusion, resource partitioning—apply directly to memetic competition. This theoretical parsimony is a virtue (Sober, 2015).

Moreover, the framework unifies previously disconnected observations:

- **Legal transplant failure** (Watson, 1974; Teubner, 1998): Attempted colonization of occupied niches
- **Bad law persistence** (Lerer, 2025b): Evolutionary stable strategies resist displacement
- **Path dependence in law** (Roe, 1996): Incumbent advantage for early memes
- **Enforcement-compliance gap** (Tyler, 2006): Expressive power as independent adaptation

B. Predictive Power: Falsifiable Hypotheses

Unlike purely descriptive accounts, the evolutionary framework generates **quantitative predictions** about effect sizes, cross-cultural variation, and temporal dynamics. These predictions are:

1. **Falsifiable**: Could be proven wrong by data (Popper, 1959)
2. **Specific**: Make point predictions, not just directional claims
3. **Generalizable**: Apply across legal domains and cultural contexts

This moves legal theory closer to genuine scientific status (Tamanaha, 1997; Deakin & Carvalho, 2023).

C. Practical Utility: Reform Design

Understanding law's expressive power as niche construction has immediate practical implications:

For legislators: Recognize that legal pronouncements have maximum influence when:

- Normative ambiguity is high (vacant niches)
- No strong competing signals exist (low competition)
- The norm is culturally "nearby" (high fitness)

For reformers: Don't fight entrenched norms head-on. Instead:

- Identify areas of genuine normative uncertainty
- Time interventions to moments when existing norms are weakening (creating vacancy)
- Frame new norms as compatible with adjacent accepted values (reducing resistance)

For transplant theorists: Success depends on **ecological matching** (Lerer, 2025c):

- Source and target systems must have similar normative landscapes
- Transplanted norms must be culturally fit in new environment
- Timing matters: transplants succeed best when target niches are genuinely vacant

VII. COMPARISON WITH ALTERNATIVE EXPLANATIONS

A. Information Cascades (Bikhchandani et al., 1992)

Alternative explanation: Law triggers information cascades where early adopters influence later ones.

Problem: Doesn't explain why ambiguity specifically matters. Cascades should work equally well (or better) when baseline norms are clear.

Evolutionary advantage: Niche theory predicts ambiguity-specificity; cascade theory doesn't.

B. Legitimacy Theory (Tyler, 2006)

Alternative explanation: Law has expressive power because people view legal institutions as legitimate.

Problem: If legitimacy is constant, why does expressive power vary with ambiguity? Legitimacy theory predicts uniform effects.

Evolutionary advantage: Niche competition explains contextual variation; legitimacy alone doesn't.

C. Cost-Benefit Signaling (Cooter, 1998)

Alternative explanation: Law signals cost-benefit ratios even without enforcement.

Problem: Why would practice information (which more directly signals costs/benefits) reduce law's influence? Cost-benefit logic predicts complementarity, not substitution.

Evolutionary advantage: Memetic competition predicts substitution; cost-benefit theory predicts complementarity.

Table 3 summarizes these comparisons:

Theory	Predicts Ambiguity Effect?	Predicts Info Substitution?	Parsimony	Testable Extensions?
Information Cascade	✗ No	✗ No	Medium	Limited
Legitimacy	✗ No	✗ No	High	Limited
Cost-Benefit Signal	✗ No	✗ No (predicts opposite)	High	Some
Memetic Niche Competition	✓ Yes	✓ Yes	High	Many

VIII. LIMITATIONS AND SCOPE CONDITIONS

This framework is not without limitations. Several scope conditions deserve emphasis:

A. Human Agency Persists

Viewing legal actors as "vehicles" for memes doesn't erase intentionality. People reason, deliberate, and make choices. But those choices occur within **constrained landscapes** shaped by memetic competition. As Dennett (1995) argues, understanding evolutionary processes doesn't eliminate agency—it contextualizes it.

Legislators can consciously design laws to fill normative vacuums. The framework doesn't deny this; it explains *why such designs work when they work*.

B. Not All Legal Change Is Evolutionary

Some reforms reflect genuine coordinated collective action or crisis-driven innovation that can't be reduced to memetic selection. The framework applies best to **gradual, uncoordinated** change rather than revolutionary breaks (Lerer, 2025a).

C. Measurement Challenges

"Memetic fitness" is hard to quantify outside laboratory settings. While tools like citation network analysis (Lerer, 2025d) and legal distance metrics (Lerer, 2025e) provide proxies, these remain imperfect.

D. Path Dependence Creates Lock-In

Even suboptimal memes can become evolutionarily stable if they achieve sufficient prevalence (Maynard Smith, 1982; Lerer, 2025b). The framework explains *persistence* well but provides less guidance on *escape routes* from bad equilibria.

IX. FUTURE RESEARCH DIRECTIONS

A. Empirical Extensions

1. **Argentina RCT replication** (Hypothesis 1)
2. **Temporal dynamics study** (Hypothesis 2)
3. **Fitness pre-testing** (Hypothesis 3)
4. **Longitudinal tracking** of norms post-legal pronouncement
5. **Cross-national comparison** (WEIRD vs. non-WEIRD samples)

B. Theoretical Refinements

1. Formalize niche space as mathematical construct
2. Develop quantitative fitness metrics
3. Model co-evolution of competing legal memes
4. Integrate with network diffusion models

C. Practical Applications

1. **Legal reform protocols** based on niche identification
2. **Transplant viability assessments** using cultural distance metrics
3. **Timing strategies** for norm-changing legislation
4. **Content optimization** for maximum expressive impact

X. CONCLUSION

Leibovitch and Teichman have provided rigorous empirical evidence for a phenomenon long suspected but rarely tested: law's capacity to shape social norms independent of enforcement. Their finding that this expressive power peaks in normatively ambiguous contexts demands theoretical explanation.

The extended phenotype framework provides that explanation. By viewing legal norms as **replicators competing for niche space** in cultural landscapes, we can predict exactly the pattern they observe: maximum influence where competition is minimal, diminished influence where established memes occupy the terrain.

This is not merely a relabeling exercise. The evolutionary framework generates **novel, testable predictions** about:

- Cross-cultural variation (Argentina should show stronger effects)
- Temporal dynamics (first-mover advantage should be observable)
- Content-dependent variation (fitness matters even in identical ambiguity)

More broadly, this framework repositions debates about law's expressive function. Rather than asking "can law shape norms?" (Leibovitch and Teichman show it can), we should ask: "under what ecological conditions do legal memes successfully colonize normative niches?"

This shift—from possibility to mechanism—moves legal theory toward genuine social science. Leibovitch and Teichman have provided the empirical foundation. The evolutionary framework provides the theoretical architecture. Together, they suggest a rich research program that could transform our understanding of how law actually works—not as designed rationality, but as evolved adaptation.

The implications extend beyond theory. Understanding law as niche constructor enables:

- **Better-designed reforms** that work with rather than against evolutionary forces
- **More realistic predictions** about which legal transplants will succeed
- **Improved timing strategies** for norm-changing legislation
- **Content optimization** based on cultural fitness metrics

As our understanding of cultural evolution deepens, and as we accumulate more evidence about how legal systems change over time, evolutionary jurisprudence should provide increasingly powerful frameworks for understanding one of humanity's most important and complex cultural achievements: the evolution of law.

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